

PERFORMANCE WORK STATEMENT

Oregon Caves National Monument & Preserve (ORCA)
Tree Thinning & Piling
Solicitation (Request for Quotations-RFQ) No. 140P8426Q0017

SECTION 1 - BACKGROUND INFORMATION

NATIONAL PARK SERVICE

The National Park Service (NPS) is a bureau of the U.S. Department of the Interior (DOI) that has been entrusted with the care of our national parks since 1916. The National Park System currently has 429 units (often referred to as parks), covering more than 85 million acres in all 50 states, the District of Columbia, and US territories.

The NPS also has more than 150 related areas that are linked in importance and purpose to places managed directly by the National Park Service by preserving important segments of the nation's natural and cultural heritage. They are designated by acts of Congress or by the Secretary of the Interior (affiliated areas). The majority of related areas are not units of the National Park Service and are managed by other government agencies or non-government organizations and landowners. The National Park Service is involved in related areas by directly managing the entire or sections of a related area, or by providing technical or financial assistance.

The NPS preserves unimpaired natural and cultural resources, and values of the National Park System for the enjoyment, education, and inspiration of this and future generations. The NPS cooperates with partners to extend the benefits of natural and cultural resource conservation and outdoor recreation throughout this country and the world.

The NPS – Business Service Contracting Division (BSCD) – Contracting Operations – Strategic (ConOps-Strategic) supports the acquisition needs of the entire NPS. The NPS – BSCD-ConOps-Strategic issues contracts through the Federal Acquisition Regulation's (FAR) for utilities, wildland fire and incident management, services, construction, A&E for the entire NPS.

OREGON CAVES NATIONAL MONUMENT AND PRESERVE (ORCA)

Long before Oregon Caves became a National Monument in 1909, the vision for a hotel and resort at the cave entrance was already beginning to take shape.

The first permanent structure built here was the Chalet in 1924, which now serves as the Visitor Center. However, this isn't the Chalet we see today. In 1942, the building was rebuilt, adding a third floor and the iconic archway. Today, the upper two floors of the Chalet function as dormitories for seasonal guides.

Solicitation (Request for Quotations-RFQ) no. 140P8424Q0017, Amendment no. 4
Attachment 3 – Revised Statement of Work (5/6/26)
Tree Thinning and Piling, Oregon Caves National Monument and Reserve (ORCA)

Following the Chalet, several rustic cabins were built in 1926, just up the slope beyond the Chalet archway. Originally intended for visitors, these cabins later served as summer ranger residences in 1935. Due to plumbing issues affecting the cave system, all but one of the cabins were removed. The last remaining cabin now houses the resource management office for the National Monument.

In 1929, plans were announced by local builder Gust Lium to construct the majestic Chateau, a lodge that has since become an iconic part of the Oregon Caves experience.

SECTION 2 – PROJECT INFORMATION

2.1 PROJECT DESCRIPTION

The National Park Service at Oregon Caves National Monument & Preserve has a requirement to reduce the fuel load and change fuel arrangement inside the park's boundary by mechanically cutting and piling small diameter (< 8 inches DBH) conifers within the unit(s) boundaries. The objective of this project is to reduce the fuel load and change fuel arrangements to reduce the intensity of wildland fire around the Headquarters area, the Historical District (Units 1-9), and the Cave Creek Campground. This project will assist with hazard fuels reduction within the Monument and Preserve which will lessen the chances of catastrophic wildland fire due to natural or human-caused ignitions that could threaten Historical and non-historical structures.

The Contractor shall furnish all equipment and sufficient personnel for selected maintenance (i.e., chainsaws, tools, proper personal protective equipment, chippers, etc.) and all related incidental work as in accordance with the unit specifications stated herein. No Government furnished property shall be provided.

2.2 PROJECT AREA

These cut and pile project areas are approximately 208 acres in total. These units are spread out along the main Highway 46 and the Historical District at Oregon Caves NM (see map attachments). Before work commences, the NPS COR will make sure the contractor is familiar with using Avenza mapping app, the responsibility to stay within the designated areas on the Avenza map will solely rely on the contractor. No flagging, unless marking an avoidance area or specific tree(s), will be flagged along unit(s) boundaries.

This project contains areas with steep slopes. The forest inside this project is generally mixed conifer with Ponderosa Pine, Douglas Fir and Tan Oak. The elevation of the project sites range from 2500 ft to 5500 ft. Weather at this elevation can include rain, lightning, sun, snow, and occasional high winds (30-50 mph). All work shall be conducted within park boundaries.

2.3 SCOPE OF WORK

The contractor shall provide all labor, equipment, materials, supplies and services to accomplish all work required under the following description of work. This shall include mobilization to and from work sites. Motorized equipment is limited to what can be hand-held and hand carried.

The contractor shall fell standing live trees <8" Diameter at Breast Height (DBH) and dead trees <13" DBH, and prune remaining trees, remove ladder fuels, buck up dead and down material, and pile all resulting material on-site down to 1" in diameter. All work must be conducted in a manner that protects park visitors, rare plants,

archeological sites, monument infrastructure, preserves wildlife habitat, and minimizes the aesthetic impacts of the work onto the monument.

Future pile burning will be conducted by Crater Lake National Park personnel, other agency personnel or issued by another contract and is not part of this contract. Excluded areas (e.g., rare plant and wildlife habitat, archeological sites, etc.) will be identified and flagged by park personnel or will be identified by park provided archeological monitors.

Contractor is responsible for maintaining traffic control during operations where cutting will impact the roadway. Contractor is responsible for providing polyethylene plastic to cover piles.

2.4 WORK STANDARDS AND THINNING PRESCRIPTION

Thinning Prescription:

- Thin trees over 12 inches tall to 8 inches DBH. Leave all live trees over 8 inches DBH.
- Limb all live and dead branches on leave trees 6 to 8 feet above ground without reducing the live crown to less than 50% of the overall tree height. All pruning stobs will be less than 1/2 inch in length on all sides.
- Leave a minimum of ONE tree every 15 feet. If all trees are less than 8 inches DBH, pick one tree, with a preference toward Yew, Ponderosa Pine and Douglas Fir. Also look for the most vigorous tree or the one with the least visual defects for the leave tree.
- Cut and pile all “ladder” fuels within the drip line of existing trees and moving material at least 7 feet beyond remaining trees. Ladder fuels include brush greater than 1 foot tall and trees up to 8 inches DBH. Trees greater than 8 inches DBH SHALL NOT be removed unless dead already.
- Burn piles will not be located at the base of remaining trees.
- General Appearance - Avoid straight lines, provide vertical diversity, vary spacing and avoid “sterilization”.
- Flush cut all stumps within 3 inches of the ground.
- Snags (dead standing trees) - Cut snags less than 13 inches DBH, leave all snags great than 13 inches DBH. Bowls and limbs of snags cut are to be bucked and piled within living cut tree piles.
- Woody Debris - Cut and pile all down material less than 13 inches in diameter. Leave all down material greater than 13 inches. Avoid bucking logs that are not going to be piled.

- Work with park provided Archaeology Monitors to avoid piling in sensitive sites. These areas will be marked with candy stripe color flagging.
- If can dumps or other artifacts are discovered, contact Archaeology Monitors (NPS) immediately and move on with thinning and piling by moving at least 30' beyond last seen artifact.
- No live limbs shall be left on the stump of any cut stem.
- The COR may reserve individual snags from felling requirements when snags are deemed necessary for other resource goals. These snags will be flagged before work begins.

2.5 EXCLUDED AREAS

Areas excluded from thinning will be flagged with orange flagging or other flagging by NPS. The Contractor shall be responsible for protecting any identified flagged area or sensitive site.

Piling Prescription:

Vegetation varies throughout the units and there are sections with lighter and heavier fuels.

- Hand pile all slash (natural dead and down, and activity slash) less than 8" in diameter and greater than 2 feet in length.
- Pile heights 4-6'
- Pile widths 4-6'
- All piles shall be constructed by laying limbs, stems, cut boles, and other slash in the pile to be conical so that the pile will fall into itself as it burns.. Slash that causes large air spaces in piles shall be cut to eliminate air spaces. Each pile shall include an area of small sized slash (small branches less than ¼ to ½ inch in diameter and/or small branches with needles or leaves attached) to provide "kindling" for prompt ignition and to aid in combustion of larger slash. These fuels shall be placed in the center of the pile.
- Piles shall be capped with 4 mil polyethylene plastic. Limbs or other woody debris should be placed over the piles to secure plastic against reasonable wind events. The plastic should cover approximately of 80% percent of the pile. All four corners and the middle of the plastic sheets shall be anchored with slash or other debris. Covering shall be done at the time of piling.
- Piles are not to be placed next to or on top of residual green trees, standing dead trees, on stumps, or

near logs greater than 13” in diameter, or on trails, roads or in road ditches.

- Piles should be located a minimum of 15’ from existing live trees whenever possible.
- Cut materials must be piled within 20 days of being cut.

SECTION 3 – GENERAL INFORMATION

3.1 Contractor Personnel

3.1.1 Project Manager

The contractor shall provide a project manager who shall be responsible for the performance of the work. The name of this person, and an alternate or alternates, who shall act for the contractor when the manager is absent, must be designated in writing to the contracting officer.

3.1.1.1 The project manager or alternate must have full authority to act for the contractor on all contract matters relating to daily operation of this contract.

3.1.1.2 The project manager or alternate must be available during normal work hours to meet in the park with government personnel (designated by the contracting officer) to discuss problem areas.

3.1.1.3 If the Contractor’s employees do not speak English, the Contractor’s Project Manager shall be fluent and conversant in both English and the language of their non-English speaking employees. A working (English literate) supervisor, who is knowledgeable and experienced in the required work and supervision, shall be provided for each crew and is required to stay with the crew while work is in progress. If the crew is non-English speaking, the supervisor must be bi-lingual in English and the language of the crew members.

3.1.2 Employee Training

~~The contractor shall ensure that employees performing tree work are fully trained to current arboricultural industry standards for each task they undertake. Contractor employees engaged in felling, climbing, and rigging of trees must have current International Society of Arboriculture, Tree Care Industry Association, or equivalent professional certification in those activities before starting work under this contract. Contractor employees operating winches, power tools and heavy machinery must be fully trained and proficient in the use of this equipment.~~

3.2 Schedule and Work Plan

Period of performance shall begin no earlier than 7/16/26, anticipated start date on-site is between 7/16/26 and 7/20/26, and all work shall be completed by 9/30/26.

Prior to project commencement, the contractor shall provide to the NPS an updated written work plan that details their work force, equipment, and schedule to provide for completion of the work within the contract period of performance. This work schedule must be acceptable to the NPS. Adjustments to performance period of up to two weeks may be made to account for seasonal variation in weather and associated plant life cycles if jointly agreed upon by the contractor and the NPS.

At the beginning of the first workday, the Contractor and a designated NPS representative will meet to ensure that proper equipment and Personal Protective Equipment (PPE) are being used. The designated NPS representative shall periodically monitor work progress to ensure the work limitations and specifications are properly understood and implemented.

3.3 Hours of Operation

All work will be performed within Oregon Caves National Monument. Work shall occur during daylight hours, Monday through Friday. No work shall be allowed on Saturdays, Sundays, and federal holidays without COR approval. Work around occupied structures may need to occur at or after 7 a.m. and will start times will be discussed with the COR prior to starting work in the area.

3.4 Working Conditions and Use of Premesis

3.4.1 Felling and Topping Trees: Felling and topping trees shall not be performed in wind conditions that will interfere with the feller's ability to control the direction of a tree's fall. No work activities under this contract shall be performed in sustained winds greater than 25 mph, in whiteout conditions, in an area under active flood warning, or when snow depth or avalanche conditions prohibit safe access to the work site.

3.4.1 Weapons: The use of weapons by the contractor is prohibited.

3.4.2 Garbage and Sewage: Garbage and food residue shall be kept inside bear proof garbage cans or closed vehicles and always made unavailable to wildlife. All garbage shall be removed daily. These rules also apply to lunchtime garbage, which include fruit peelings, apple cores, nut shells or excess food. Exposure of any food or residues which could attract bears is strictly prohibited.

Contractor(s) shall remove from National Park Service lands all contaminated soil, vegetation, debris, vehicle oil filters (drained of free-flowing oil), batteries, oily rags, and waste oil resulting from use, servicing, repair, or abandonment of equipment.

Contractor(s) shall take all reasonable precautions to prevent pollution of air, soil, and water by Contractor's Operations. In the event that Contractor's Operations or servicing of equipment result in pollution to soil or water, Contractor shall conduct cleanup and restoration of the polluted site to the satisfaction of National Park Service at no additional cost to the Government.

3.4.3 Temporary/Storage Facilities

3.4.3.1 Storage/Staging Area: The Government will NOT provide any secure storage/staging areas for the contractor. All gear, equipment, and supplies shall be removed nightly.

3.4.3.2 Sanitary/Toilet Facilities: Utilize "Leave No Trace" ethics while in the park. Please see www.LNT.org for details. There are vault toilets located inside the Cave Creek Campground and at the main parking lot of the unit; these are available for use by contractor.

3.4.3.3 Water and Electricity: Water and 120V electricity will NOT be available to the contractor at this location.

3.4.3.4 Food Storage: When not in use, food, lawfully taken wildlife and fish, garbage, and containers and equipment used to cook or store food shall be contained within bear-resistant food storage lockers or out of sight in a hard sided vehicle or vehicle trunk. No provisions for camping in the park will be made available to the contractor.

3.4.3.5 Parking Areas: Parking areas shall be established in existing pull outs or parking lots only.

3.5 Safety

3.5.1 All operations under this contract shall be conducted in accordance with ANSI Z133.1-2006 Tree Care Safety Standards, and all federal OSHA, state and local safety requirements. Where OSHA regulations and ANSI standards conflict, OSHA regulations will take precedence.

3.5.2 Additional Resources:

- 29 CFR 1910 – OSHA General Industry Regulations & Standards, specifically:
 - [eTool : Logging - Manual Operations - Felling Trees | Occupational Safety and Health Administration \(osha.gov\)](http://www.osha-slc.gov/publications/eTool/Logging-Manual-Operations-Felling-Trees-Occupational-Safety-and-Health-Administration/osha.gov)
 - OSHA Regulations for tree removal operations can be found at http://www.osha.gov/pls/oshaweb/owadisp.show_document?p_table=STANDARDS&p_id=9862

- National Park Service Occupational Safety and Health Program – Reference Manual 50B - [Reference Manual 50B: NPS Occupational Safety and Health Program](#)

3.5.3 The contractor shall provide sufficient personnel such that a minimum of 2 employees serve as safety spotters during each individual tree topping and falling procedure, the NPS representative on-site may act as a safety spotter. These employees shall be trained to serve in this role, which shall be their primary function during the work of this project. Safety spotters shall be deployed such that they maintain an exclusion zone of a diameter that is 2 times the length of the tree being topped or felled, into which unauthorized persons (park employees not associated with the operation, and the public) cannot enter. Employees shall be equipped with radios or other means of signaling one another during the cutting procedures. If the safety zone is breached during the felling procedure, work shall be stopped until the unauthorized person(s) leave(s) the exclusion zone. If necessary, the project inspector, COR, or designated park representative will escort the unauthorized person(s) from the exclusion zone so that the procedure may continue.

3.5.4 The contractor shall ensure the use by its employees of all required personal protective equipment (PPE) including hard hats, work boots, safety glasses or goggles, hearing protection, gloves, chaps, ropes, harnesses, etc. Contractor employees shall wear ANSI 107-2004 Class 2 high visibility vests while conducting operations in or adjacent to roadways or parking areas.

3.5.5 No one except the operator shall be within 10 feet of a power saw unless assisting with moving cut material and will need to have approved chainsaw PPE on. All gasoline and diesel powered equipment, including but not limited to trucks and chainsaws, shall be equipped with spark arresters.

3.5.6 If at any time the COR or designated park representative determines that the work is being conducted in an unsafe manner, the contractor will be notified and shall immediately cease all work activities.

3.5.7 Prevent Fire Starts: To prevent accidental fire starts, saws shall be equipped with spark arrestors. Any accidental fire starts shall be reported immediately. Should the fire exceed the size of a campfire and threaten workers' safety, they should depart the area and call 911 followed up by calling the COR immediately.

3.5.7.1 Storage of Petroleum and Other Highly Flammable Products. Gasoline, oil, grease, or other highly flammable material must be stored either in a separate building used exclusively for such storage, or at a site where all combustible debris and vegetation is cleared away within a radius of 25 feet. Fire extinguishers and/or sand barrels may be required at such locations specified by the NPS when unusually hazardous conditions exist.

3.5.7.2 Emergency Measures. The NPS may require emergency measures, including the necessary shutting down of equipment or portions of operations in the project area during periods of fire emergency created by hazardous climatic conditions.

3.65.7.3 The building of lunch, warming, and other fires within National Park Service property is prohibited.

3.5.7.4 Smoking: Smoking is prohibited except in developed campgrounds, vehicles, or while in an area of at least three feet in diameter that is barren of all flammable materials. All smoking filters (butts) shall be properly disposed of in an approved refuse receptacle as opposed to being discarded on the ground. The COR/POC may authorize the use of a designated smoking area if requested. Fires caused by Contractor smoking shall be deemed negligent.

3.5.7.5 Compliance with State Forest Laws. Listing of specific fire precautionary measures herein is not intended to relieve the Contractor in any way from compliance with the State Fire Laws covering fire prevention and suppression equipment, applicable to operations under this contract, permit or license.

3.5.8 Fire Tools Required During Closed Fire Season: The operator/contractor shall furnish fire tools to all personnel on site using the following combinations.

	NUMBER OF PERSONNEL										
	1- 4	5	6	7	8	9	10	11	12	13	14
KIND OF TOOLS	NUMBER OF TOOLS REQUIRED										
Pulaskis	1	1	1	1	1	1	2	2	2	2	2
Shovels	2	2	2	3	3	3	3	4	4	5	5
Hazel hoes	1	2	3	3	4	5	5	5	6	6	6

In addition to the above hand-tools, the operator/contractor must provide a backpack pump can filled with water located with the toolbox in a readily available area. All shovels are to be size 0 or larger, long handled.

All tools shall be sharp and ready for service. Fire extinguishers as follows:

For chainsaws - 8 oz. capacity by weight.

For vehicles - UL rating of at least 4 BC.

3.6 Environmental and Resource Compliance

3.6.1 The contractor shall be responsible for the immediate cleanup of any spillage or leakage of fuel, oil, or any other substance and spill area will be restored to its original condition. All spills or leaks shall be reported to COR or designated park representative immediately.

3.6.2 Spill Prevention and Spill Reporting/Clean-Up:

3.6.2.1 During non-work operations, stationary equipment should be parked over specially prepared containment pads designed to trap any leaking oil, fuel, or hydraulic fluids.

3.6.2.2 Inspect project site daily for proper storage of hazardous materials, proper parking of equipment on containment pads, and for hydraulic and oil leaks of equipment, tighten hoses, and ensure they are in good condition. If equipment is leaking, it should be immediately repaired or removed from the Park at Contractor's expense.

3.6.2.3 Routine oiling, lubrication, and refueling shall be conducted with secondary containment using Best Management Practices (BMPs) at all times. Refueling of equipment in wetlands or stream channel areas is not allowed at any time.

3.6.2.4 Contractor shall maintain secondary containment for all equipment operating with fluids or when direct discharge of leakage, spills, or other source of construction or equipment fluids can flow directly to any streambed, whether flowing with water or dry. Containment shall be designed and installed to prevent accidental spills into streambeds in the event of mechanical failure or hose breakage.

3.6.2.5 Contractor shall digitally photograph or videotape the spill release at its source and photographically document the initial spill extent within 30 minutes of initial release.

3.6.2.6 Contractor shall notify the National Response Center and Contracting Officer of all releases of reportable quantities of hazardous substances on or in the vicinity of Contract Area that are caused by Contractor's employees, agents, Subcontractors or their employees or agents, directly or indirectly, as a result of Contractor's Operations, in accordance with 40 CFR 302

3.6.2 Equipment Must be Cleaned Prior to Arrival in Park: All equipment intended for use on this project must be cleaned prior to its arrival in the park and free of all plant materials (plant parts and propagules) upon entry. The NPS will inspect all equipment prior to being moved into contract area. If equipment does not pass inspection the contractor's equipment not passing inspection, it will be required to be thoroughly cleaned and re-inspected until it passes inspection. Personnel involved in project implementation shall make daily checks of boots, boot laces, packs, etc. to ensure no "hitchhiking" weed seeds are introduced to the project area. Boot brushes and trash bags shall be provided by contractor. If equipment is found to have entered ORCA with potential contaminants, contaminants shall be removed

from the Park at the NPS's direction at the contractor's expense and may be subject to citation by the Park.

3.6.3 Ground Disturbance: The contractor shall repair all ground disturbances within reason, with the exception of those resulting from woody debris falling into undeveloped vegetated areas.

3.6.4 Resource Damage: Any ruts and road damage caused by the Contractor will be repaired by the Contractor at their expense. If the Contractor's activities result in damage to Resources, the Contractor shall incur all expenses associated with damage assessment, damage repair and monitoring.

3.6.4.1 Parking in pull outs and picnic areas is required. Do not park off-pavement on vegetation.

3.6.4.2 No off-road vehicle use is allowed. Vehicle use is limited to the same roads as the public.

3.6.4.3 No cutting live or dead trees with obvious and active cavity nests or other signs of significant wildlife use. These should be flagged and discussed with the COR if not already identified by NPS personnel.

3.6.4.4 The use of drones and/or UAV's are not authorized at Oregon Caves NM and Preserve during performance of this contract.

3.6.4.5 All conduct outside of the specified work is subject to park rules and regulations concerning littering, wildlife harassment, collecting, resource damage and other topics as specified for the NPS in the Code of Federal Regulations title 36, which can be found at <http://www.gpoaccess.gov/ecfr/>

3.6.4.6 All Contractor or employee conduct is subject to park rules and regulations concerning: littering, wildlife harassment, collecting, resource damage and other topics as specified for the NPS in the Code of Federal Regulations title 36 ([eCFR :: 36 CFR Part 2 -- Resource Protection, Public Use and Recreation](#)).

3.6.5 Biobased and Sustainable Products: 7 U.S.C. 8102; the Farm Security and Rural Investment Act of 2002 (FSRIA), 7 U.S.C. 8102; the Federal Acquisition Regulation; Executive Order (EO) 13514, "*Federal Leadership in Environmental, Energy and Economic Performance*," dated October 5, 2009; EO 13423, "*Strengthening Federal Environmental, Energy, and Transportation Management*," dated January 24, 2007; and Presidential Memorandum, "*Driving Innovation and Creating Jobs in Rural America through Biobased and Sustainable Product Procurement*," dated February, 2012 to provide biobased products.

All supplies and materials shall be of a type and quantity that conform to applicable Federal specifications and standards, and to the extent feasible and reasonable; include the exclusive use of biobased and recycled products.

The following is a list of categories for bio preferred products that may be required in performance of this construction contract:

- 2-Cycle Engine Oils – 34% Minimum Biobased Content
- Agricultural Spray Adjuvants – 50% Minimum Biobased Content
- Chain and Cable Lubricants – 77% Minimum Biobased Content
- Diesel Fuel Additives – 90% Minimum Biobased Content
- Dust Suppressants – 85% Minimum Biobased Content
- Erosion Control Materials – 77% Minimum Biobased Content
- Eyewear – 25% Minimum Biobased Content
- Fertilizers – 71% Minimum Biobased Content
- Fuel Conditioners – 64% Minimum Biobased Content
- Gasoline Fuel Additives – 92% Minimum Biobased Content
- Greases – Truck – 71% Minimum Biobased Content
- Inks – Sheetfed (Black) – 49% Minimum Biobased Content
- Inks – Sheetfed (Color) – 67% Minimum Biobased Content
- Mobile Equipment Hydraulic Fluids – 44% Minimum Biobased Content
- Mulch and Compost Materials – 95% Minimum Biobased Content
- Multipurpose Lubricants – 88% Minimum Biobased Content
- Other Lubricants – 39% Minimum Biobased Content
- Pneumatic Equipment Lubricants – 67% Minimum Biobased Content
- Safety Equipment – 25% Minimum Biobased Content
- Shopping and Trash Bags – 22% Minimum Biobased Content

For more information including definition of terms with regard to the Department of Agriculture Biobased Program go to: <https://www.biopreferred.gov/BioPreferred/faces/pages/ProductCategories.xhtml>

3.7 Quality Assurance

According to the Inspection of Services Clause (FAR52.246-4), the government will evaluate the contractor's performance under this contract. For those tasks listed in the above Section 2.3 Scope of Work for primary tasks of Tree Thinning and Piling, the COR or a designated government inspector will follow the method of surveillance specified in this contract, and will record all surveillance observations. When an observation indicates deficient performance, the COR or designated government inspector will require the project manager or representative at the site to initial the observation. The initialing of the observation does not necessarily

constitute concurrence with the observation, only that he or she has been made aware of the deficient performance. Government surveillance of tasks not listed in the above section 2.3 Scope of Work (such as provided for by the Inspection of Services clause) may occur during the performance period of this contract. Such surveillance will be done according to standard inspection procedures or other contract provisions. Any action taken by the contracting officer as a result of surveillance will be in accordance with the terms of this contract.

3.7.1 Unsatisfactory Work/Re-work of a Unit: If the quality of work does not meet the standards outlined in this Scope of Work, the COR/POC will document instances of un-acceptable work with photos and a description of non-compliance. The Contractor will be notified by the CO of all findings of non-compliance. The contractor shall be responsible for correcting all unsatisfactory work within ten (10) business days of notification, unless otherwise agreed to, including:

3.7.1.1 All safety hazards created by the contractor must be corrected, such as cut trees leaning into other trees, fences, power lines, etc.

3.7.1.2 Hand Piles that are too close to leave trees, private property boundaries, or any type of structure (building, fence, powerlines, etc.) must be remedied.

3.7.1.3 Missed areas within the work unit will not be considered a part of the work being inspected and must be re-worked regardless of the results of the inspection of the work completed in the unit.

The Contractor is responsible for cleaning up all camp and worksites before leaving the area. Final payment may be withheld until the Contractor has complied with this requirement.

As the Contractor nears the completion of the specified work, a site visit will be scheduled with the COR and/or designated inspector to determine if the work has been successfully completed.

3.9 Travel, Lodging and Meals

The contractor shall be responsible for all travel, lodging, and meal expenditures for all personnel under their employ involved in the work under this contract.

SECTION 4 - DEFINITIONS

2-Cycle Engine Oils – Lubricants designed for use in 2-cycle engines to provide lubrication, decreased spark plug fouling, reduced deposit formation, and/or reduced engine wear.

Agricultural Spray Adjuvants – Products mixed in the spray tank with herbicide, pesticide, or fertilizer formulas that will improve the efficiency and the effectiveness of the chemicals, including sticking agents, wetting agents, etc.

Calendar Days - Every day shown on the calendar, Saturdays, Sundays, and holidays included.

Chain and Cable Lubricants – Products designed to provide lubrication in such applications as bar and roller chains, sprockets, wire ropes and cables. Products may also prevent rust and corrosion in these applications.

Change Order - An order issued to the Contractor by the Contracting Officer, pursuant to the “change” clause included in Section I of this contract, requiring work to be performed, within the general scope of the contract.

Clearing Limits - The limits of clearing as designated on the ground, shown on the drawing, or designated in the Special Project Specifications.

Contract Pay Item - A pay item designated on the bid schedule and described by a specification.

Contracting Officer (CO) - The person executing this contract on behalf of the Government, including any duly appointed successor and authorized representatives of the Contracting Officer acting within the limits of his/her authority.

Contracting Officer's Representative (COR) - The on-site contract administrator for the Contracting Officer. The duties and responsibilities of the Contracting Officer's Representatives are defined below in this Section or in a letter of designation issued by the Contracting Officer.

Contractor - The individual, partnership, joint venture, or corporation undertaking the execution of work under the terms of the contract and acting directly or through their agent, employees, or subcontractors.

Deficient Service - A service output that does not meet the standard of performance requirement specified in the contract for that service.

Diameter at breast height (DBH) – is the measurement of outside bark diameter at 4.5 feet above the forest floor on the uphill side of the tree. For determining breast height, the forest floor includes the duff layer that may be present but does not include unincorporated woody debris that may rise above the ground line.

Diesel Fuel Additives – (1) Any substance, other than one composed solely of carbon and/or hydrogen, that is intentionally added to diesel fuel (including any added to a motor vehicle's fuel system) and that is not intentionally removed prior to sale or use. (2) Neat biodiesel, also referred to as B100, when used as an additive. Diesel fuel additive does not mean neat biodiesel when used as a fuel or blended biodiesel fuel (e.g., B20).

Dust Suppressants – Products formulated to reduce or eliminate the spread of dust associated with gravel roads, dirt parking lots, or similar sources of dust, including products used in equivalent indoor applications.

Erosion Control Materials – Woven or non-woven fiber materials manufactured for use on construction, demolition, or other sites to prevent wind or water erosion of loose earth surfaces, which may be combined with seed and/or fertilizer to promote growth.

Equipment - All machinery and equipment, together with the necessary supplies for upkeep and maintenance, including tools and apparatus necessary for the proper construction and acceptable completion of the work.

Eyewear – Products that are worn over the eyes, either to provide protection (from the sun, impact, chemicals, etc.) or to enhance vision. Eyewear consists of frames and lenses, either separately or together. This category includes contact lenses.

Fertilizers – Products formulated or processed to provide nutrients for plant growth and/or beneficial bacteria to convert nutrients into plant usable forms. Biobased fertilizers, which are likely to consist mostly of biobased components, may include both biobased and chemical components.

Fuel Conditioners – Products formulated to improve the performance and efficiency of engines by providing benefits such as removing accumulated deposits, increasing lubricity, removing moisture, increasing the cetane number, and/or preventing microbial growths within the fuel system.

Gasoline Fuel Additives – Chemical agents added to gasoline to increase octane levels, improve lubricity, and provide engine cleaning properties to gasoline-fired engines.

Greases – Truck – Lubricants composed of oils thickened to a semisolid or solid consistency using soaps, polymers or other solids, or other thickeners. Lubricants that are designed for use on the fifth wheel of tractor trailer trucks onto which the semi-trailer rests and pivots.

Labor Standards Provisions - Those statutory and regulatory requirements pertaining to the Contractor's employees and employment practices.

Materials - Any substances for use in the construction of the project and its appurtenances.

Mobile Equipment Hydraulic Fluids – Hydraulic fluids formulated for general use in nonstationary equipment, such as tractors, end loaders, or backhoes.

Multipurpose Lubricants – Products designed to provide lubrication under a variety of conditions and in a variety of industrial settings to prevent friction or rust. Greases, which are lubricants composed of oils thickened to a semisolid or solid consistency using soaps, polymers or other solids, or other thickeners, are not included in this item. In addition, task-specific lubricants, such as chain and cable lubricants and gear lubricants, are not included in this item.

Notice of Noncompliance - A written notice from the Contracting Officer's representative or inspector which documents, for the Contractor's attention, specific performance deficiencies.

Other Lubricants – Lubricant products that do not fit into any of the BioPreferred Program's specific lubricant categories. This category includes lubricants that are formulated for specialized uses. Examples of other lubricants include lubricants that are formulated for specialized uses. Examples of other lubricants include lubricants used for sporting or exercise gear and equipment, musical instruments, and specialized equipment such as tree shakers. This category excludes lubricants that are covered by the specific lubricant categories such as chain and cable lubricants, firearm lubricants, forming lubricants, gear lubricants, multipurpose lubricants, penetrating lubricants, pneumatic equipment lubricants, and slide way lubricants.

Personal Protective Equipment (PPE) – Equipment used by workers that protect against worksite accidents, such as goggles, ear plugs, face shields and gloves.

Performance Requirements Summary - A listing of the service outputs under the contract that are to be evaluated by the COR or designated park representative on a regular basis, the surveillance methods to be used for these outputs, and the performance requirements of the listed outputs.

Pneumatic Equipment Lubricants – Lubricants designed specifically for pneumatic equipment, including air compressors, vacuum pumps, in-line lubricators, rock drills, jackhammers, etc.

Quality Assurance - A planned and systematic pattern of all government actions necessary to provide confidence that adequate technical requirements are established; products and services conform to established technical requirements; and satisfactory performance is achieved. Quality assurance refers to actions by the government assurance functions for a contracted service.

Quality Control - Those actions taken by a contractor to control the production of outputs to ensure that they conform to the contract requirements.

Safety Equipment – Equipment used by workers that protects against worksite accidents, such as goggles, ear plugs, face shields and gloves.

Safety Plan - A written document that takes into consideration the risk assessment of the requirement and develops reasonable concepts, behaviors, and disciplines to mitigate the assessed risk.

Specifications - A general term applied to all written directions and requirements pertaining to performance of work.

Utility Services - Are services such as electricity, gas, steam, water and sewage.